Guidelines for Collection, Handling, Transportation and Storage of Used Oil by Collection Agent under Used Oil Extended Producer Responsibility (EPR) Framework

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CENTRAL POLLUTION CONTROL BOARD

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1. Background

The Ministry of Environment Forest & Climate Change has notified the Hazardous and Other Wastes (Management and Transboundary Movement) Second Amendment Rules, 2023 vide its notification No. G.S.R 677(E) dated Sept 18, 2023, wherein Extended Producer Responsibility (EPR) has been introduced for the management of used oil and shall come into force from 1st April, 2024.

As per the said rules, every producer of base and/or lubrication oil and importer of used oil has been obligated for fulfillment of Extended Producer Responsibility by purchasing extended producer responsibility certificates from registered recyclers. These Extended Producer Responsibility Certificate shall be generated through centralized portal developed by CPCB based on the quantity of used oil processed and re-refined oil re-introduced in the market.

The rules stipulate the requirement of registration of entities on EPR Portal, to facilitate transaction of business, such as procurement of used oil, sale of re-refined oil, generation and transfer recycling certificates, filing of quarterly / annual returns, and to conduct the required business transactions among the registered entities that are Producers, Recyclers, Used Oil Importers and Collection Agents to fulfill the EPR obligation.

The HOWM Rules defines that Collection Agents is any person or entity who collects used oil and supplies it to recycler, whereas, the Collection Point is defined as a facility where the authorized collection agent would collect and store used oil as per standard operating procedures or guidelines issued by the Central Pollution Control Board.

The role of Collection Agent as envisaged in the Rules is to facilitate collection and re-refining of used oils. Collection Agents play important role in retrieving used oil from small or un-organized generators thereby helps in effective collection and aggregation of used oils for re-refining, thus play a significant role in achieving circularity in base oils / lubrication oils.

2. Objective

This guideline will provide the framework for the safe and environmentally sound handling, storage and transportation of used oil by Collection Agents including regulatory requirements, standardized practices, minimal requisite facilities for collection, transportation and storage facilities.

3. Role and Responsibility of Collection Agents

As per the Extended Producer responsibility (EPR) framework notified under Hazardous and Other Wastes (Management and Transboundary Movement) Second Amendment Rules, 2023, Collection Agents are responsible for safe collection of used oil (i.e. industrial, commercial and automotive facilities) from

the generators including the bulk generators and supply to the registered recyclers in accordance with said rules.

Used oil is categorized as hazardous waste and therefore shall comply with the provisions stipulated under the Hazardous and Other Wastes (Management and Transboundary Movement) (HOWM) Rules, 2016. Accordingly, the Collection Agents shall ensure compliance with the environmental regulations, maintain records of receipt and transfer of used oil, implement safety measures to prevent spills and leaks.

They shall transport used oil using registered vehicles, maintaining detailed records and ensuring traceability of material handled. At authorized collection facilities, the used oil shall be equipped with spill containment systems to prevent contamination.

Collection agents shall store the used oil by adhering to these guidelines and shall provide the stored used oil only to the registered Recyclers or Producers.

The collection agents are required to register on the portal developed by the Central Pollution Control Board and shall provide the details on collection capacity, type of vehicles, storage facility, arrangement for handing over of used oil to registered Recycler/Producer, etc. They are also required to file quarterly and annual returns through portal.

3.1 Categorization of Collection Agent

Based on the size of operation, type of transport, levels of operations, the collection agents have been categorized as below:

- Collection Agent Level-1 (CA-1): Collection agent involved in only collection and transportation of used oil, without storage facility.
- Collection Agent Level-2 (CA-2): Collection agent involved in collection, storage and transportation of used oil, with adequate storage facility.

Collection Agent: Level-1 (CA-1):

i. Involve in collection and transportation of used oil, without having any storage facility. However, they may store the collected used oil in the storage drums or containers mounted on the vehicles only.

ii. May collect used oil in vehicle that can carry drums or containers (of size not exceeding 200 litres each).

iii. May collect used oil from all types of generators.

iv. Shall handover the collected used oil to authorised recycler / CA-2.

v. Operate within the vicinity (that is up to 75Km) of recyclers facility or CA-2 storage facilities.

vi. Can be networked/ attached with either CA-2 or registered recycler if exists within 75Km from collection area. In case, there is no recycling facility/CA-2 available in the State/nearby area the distance can be extended up to 150 km.

Collection Agent: Level-2 (CA-2):

i. Involved in collection, storage and transportation of used oil.

ii. Shall have collection point and storage facilities in accordance with the section 4.6 of these Guidelines.

iii. Can operate a fleet of truck mounted tanker/mini-vehicles.

iv. May collect the used oil from all types of generators including CA-1.

v. Shall handover the collected used oil to authorized recycler, Co-Processor or Producer. In case, for Co-processing either the generator or CA-2 or Co-processor shall declare that such oil is not fit for Re-refining.

vi. Shall operate within the state and adjoining states.

vii. The storage facility to be located preferably in industrial areas, away from the residential areas/settlements.

viii. Shall provide the list of collection agent-1 & recyclers associated/attached with them on EPR portal.

4. Regulatory requirements under HOWM Rules, 2016:

The guidelines are intended to facilitate registration of Collection Agents to operate as used oil collector in environmentally safe manner. While doing so, the Collection Agents shall comply with the extant regulatory provisions under The Water (Prevention and Control of Pollution) Act of 1974, The Air (Prevention and Control of Pollution) Act of 1981 and Environment Protection Act, 1986. As per EPR Used Oil framework, Municipalities and Local Bodies shall facilitate producers and bulk generators or collection agents to set up collection points for collection of used oils in their jurisdictional areas and the used oils so collected can be auctioned or sold to the authorised recyclers. Further, SPCB/PCC shall facilitate setup of collection points by the collection agents.

The applicable provisions are elaborated in the following sections:

4.1 Consent and Authorization

1. Collection agent (CA-2) shall obtain Consent to Establish and Consent to Operate from the concerned SPCB/ PCC before registering on the EPR portal to set up/operate storage facility or collection points for used oil.
2. Collection agents (CA-2) required to obtain authorization under HOWM Rules, 2016 from concerned SPCB/ PCC prior to registration on the used oil EPR portal.
3. Collection Agent-1 (CA-1) shall self-register on EPR portal with validation from SPCB/PCC.
4. Collection agents (CA-2) are required to register on EPR Portal for Used Oil Management.

   CA-2 or recyclers, as applicable depending upon with whom the CA-1 is attached, shall submit document stating that there is an agreement between the CA-1 and CA-2/recyclers or between CA-2 and recyclers, as applicable, and the same is required to be provided at portal.
5. Both collection agents (CA-1 and CA-2) shall register on National Hazardous Waste Tracking Portal (NHWTS) developed by CPCB (vehicle of CA-1 may be registered by sender or receiver at NHWTS).

4.2 Record & Returns Filling

1. The Collection agents shall maintain record on type and quantity of used oil collected, stored and transferred for recycling, recovery, pre-processing, co-processing and utilisation of such wastes and make these records available for audit.
2. All registered Collection agents shall file quarterly returns on the portal on or before the end of the month succeeding the quarter to which the returns relate.
3. All registered Collection agents shall file annual returns on the portal on or before 30th June following the financial year to which that return relates.

   The filing of above returns/ records pertaining to CA-1 may be ensured by associated CA-2/ recycler.

4.3 Packaging and Labelling

Proper Packaging and Labelling of containers is important for tracking the wastes from the point of generation up to the final point of disposal. The Packaging and Labelling of Used oil shall be done as per the following:

1. Collection Agents (CA-1 and CA-2) handling used oil shall ensure that used oil are packaged in a manner suitable for safe handling, storage and transportation as per this guideline. The labelling shall be done as per Form 8 of the HOWM Rules, 2016.

FORM 8

[See rules 17 (1) and 18 (2)]

LABELLING OF CONTAINERS OF HAZARDOUS AND OTHER WASTE

Handle with care

Waste category and characteristics as per Part C of Schedules II and III of these rules	Incompatible wastes and substances .....
Total quantity	Date of storage
Physical State of the waste (Solid/Semi-solid/liquid):	
Sender's name and address	Receiver's name and address
Phone.....	Phone.....
E-mail.....	E-mail.....
Tel. and Fax No.....	Tel. and Fax No.....
Contact person.....	Contact person.....
In case of emergency please Contact	

2. The containers must be able to withstand normal handling and retain integrity for a minimum period of at least one year.
3. Containers shall be made of mild steel with a suitable corrosion-resistant coating used for storing, however, other packaging containers made of 200-litre plastic drums, PP and HDPE/LDPE, may also be used. These containers should be suitable for mechanical handling.
4. The containers should have lids to completely close (i.e. sealed) to avoid any leakage.
5. The markings must be waterproof and oil proof and firmly attached so that they cannot be removed.
6. Previous content labels shall be obliterated when the contents are different.
7. Containers that contain HW shall be labelled with the words "HAZARDOUS WASTE" in Vernacular language, Hindi / English. The information on the label must include the code number of the waste, the waste type, the origin (name, address, telephone number of generator), hazardous property (e.g. flammable), and the symbol for the hazardous property (e.g. the red square with flame symbol).
8. The label must withstand the effects of rain and sun.
9. The label should contain the name and address of the occupier and operator of the facility where it is being sent for recycling i.e., Labeling of container shall be provided with a general label as per Form 8 of the HOWM Rules, 2016.

10. Emergency contact phone numbers shall be prominently displayed viz. the phone number of concerned Regional Officer of the SPCB / PCC, Fire Station, Police Station and other agencies concerned.

4.4 Handling of Used Oil and Minimal Requisite Facility

Used Oil Reception Area-to avoid any spillages during unloading and transferring the used oil at the time of reception following are required:

- Fork Lift or Overhead Crane of suitable size - required for safe unloading of used oil drums
- Platform – is required for unloading of used oil received in drums
- Hand Trolleys- required for safe handling while transferring drums
- Transfer pump – required to transfer used oil when received in tankers

The vehicles, carrying used oil should have spillage collection kits containing oil absorbent material such as fabric sheets, saw dust, booms etc.

Shower & wash - Emergency showers and eye wash stations should be provided within the storage and handling area for immediate emergency use following exposure to the wastes.

4.5 Transportation of Used Oil

For the transportation of Used oil in environmentally sound manner Collection agents shall meet the following requirements:

1. The vehicle used for transportation shall be in accordance with the provisions under the Motor Vehicles Act, 1988, and the rules made thereunder.
2. Vehicle shall be fitted with GPS.
3. Vehicle should be fitted with mechanical handling equipment as outlined in above section, for loading and unloading of container and for safe handling of used oil.
4. The vehicle involved in the material handling/transportation of used oil should be leakage/ Spillage proof.
5. The vehicles shall be labelled with logo for carrying hazardous waste material.
6. Emergency phone numbers and transport emergency (TREM) card having details of characteristics of waste (type, properties, chemical constituents, exposure hazards and first aid requirements) shall be displayed properly.
7. Used oil must be transported inside closed container (HDPE, metallic drum, any other non-reactive material suitable for carrying used oil) in

upright position and leak-proof cap to minimize risk of leakage when transported in vehicles (other than tanker).

8. During unloading of Used oil, the workers should be equipped with Personal Protective Equipment e.g. eyeglasses, mask, rubber gloves and shoes. Also emergency kits and arrangement have to be readily available.
9. Transporter shall carry documents of manifest for the used oil during transportation and follow the manifest system as per HOWM Rules, 2016 and it should be registered in the National Hazardous Waste Tracking System.
10. Each vehicle shall carry first aid kit, spill control equipment and fire extinguisher.
11. Hazardous waste transport vehicle shall run only at a speed specified under Motor Vehicles Act in order to avoid any eventuality during the transportation of used oil.
12. Educational qualification for the driver shall be as per Motor Vehicles Act, 1988, and Rules made thereunder and preferably 10th pass.
13. The driver of the transport vehicle shall have valid driver license under Motor Vehicles Act, 1988, and Rules made thereunder; from the state road transportation authority and shall have minimum of five years of experience in transporting chemicals.
14. Driver(s) shall be properly trained for handling emergency situations and safety aspects involved in the transportation of Hazardous wastes.
15. The containers used for the transportation of used oil should not be used for other purposes.
16. The transport of the hazardous waste shall be in accordance with the provisions of HOWM Rules, 2016 and the rules made by the Central Government under the Motor Vehicles Act, 1988 and the guidelines issued by the Central Pollution Control Board from time to time in this regard.
17. The occupier shall provide the transporter with the relevant information in Form 9, regarding the hazardous nature of the wastes and measures to be taken in case of an emergency and shall label the hazardous wastes containers as per Form 8 of HOWM Rules, 2016.
18. For transportation of Used oil for recycling or utilisation including co-processing, the sender shall intimate both the State Pollution Control Boards before handing over the waste to the transporter.
19. In case of transit of Used oil for recycling, utilisation including co-processing through a State other than the States of origin and destination,

the sender shall give prior intimation to the concerned State Pollution Control Board of the States of transit before handing over the wastes to the transporter.

20. In case of transportation of Used oil, the responsibility of safe transport shall be either of the sender or the receiver whosoever arranges the transport and has the necessary authorisation for transport from the concerned State Pollution Control Board. This responsibility should be clearly indicated in the manifest.

21. The authorisation for transport shall be obtained either by the sender or the receiver on whose behalf the transport is being arranged.

22. Before transportation of used oil, pre-transportation operations which include pre-inspection of tankers/ containers before filling shall be done, to check for cleanliness/ washing followed by packaging, labelling and marking. Drivers should be trained and relevant information should be provided regarding TREM (Transport Emergency) Cards and the manifest books.

23. The transporter shall collect used oil from collection point using GPS mounted vehicle.

24. The Collection agent shall comply with Manifest system (Movement Document) for hazardous waste, under HOWM Rules, 2016 as follows:

    a. The sender of the waste shall prepare seven copies of the manifest in Form 10 comprising of colour code indicated below and all seven copies shall be signed by the sender:

    b. The sender shall forward copy 1 (white) to the State Pollution Control Board, and in case the hazardous wastes is likely to be transported through any transit State, the sender shall intimate State Pollution Control Boards of transit States about the movement of the waste.

    c. No transporter shall accept waste from the sender for transport unless it is accompanied by signed copies 3 to 7 of the manifest.

    d. The transporter shall submit copies 3 to 7 of the manifest duly signed with date to the receiver along with the waste consignment.

    e. The receiver after acceptance of the waste shall hand over copy 4 (orange) to the transporter and send copy 5 (green) to his State Pollution Control Board and send copy 6 (blue) to the sender and the copy 3 (pink) shall be retained by the receiver.

    f. The copy 7 (grey) shall only be sent to the State Pollution Control Board of the sender, if the sender is in another State.

Copy number with colour code	Purpose
Copy 1 (White)	Copy 1 (White) To be forwarded by the sender to the State Pollution Control
Copy 2 (Yellow)	To be retained by the sender after taking signature on it from the transporter and the rest of the five signed copies to be carried by the transporter
Copy 3 (Pink)	To be retained by the receiver (actual user or treatment storage and disposal facility operator) after receiving the waste and the remaining four copies are to be duly signed by the receiver
Copy 4 (Orange)	To be handed over to the transporter by the receiver after accepting waste
Copy 5 (Green)	To be sent by the receiver to the State Pollution Control Board
Copy 6 (Blue)	To be sent by the receiver to the sender
Copy 7 (Grey)	To be sent by the receiver to the State Pollution Control Board of the sender in case the sender is in another State

Above manifest document may not be necessary once the sender and receiver have onbaorded on NHWTS.

4.6 Storage of used oil:

Minimal requisite facilities required for storing the used oil:

1. There shall be a designated space for unloading of Used oils in to a storage tank. The receiving storage tank shall be placed above the ground and contained with low raise parapet/bund wall with proper slope to collect spillages, if any, into a collection pit.
2. Storage sheds shall have proper slope and seepage collection pit to collect seepage/ floor washing. The collected seepage / floor washing shall be re-filled in the Used oil tanks or dry adsorbents/cotton should be used for cleaning instead of water which will disposed of to authorized hazardous waste TSDF.

3. If collection agent involved in collection and storage of used oil generated from industries, automotive, transformer, etc. then separate storage container may be provided for different type of used oil based on source of generation. Minimum two storage tank required. One for regular used Oil and the other for used transformer Oil.
4. The unloading, storage, transfer and handling of Used oils in the storage area shall be carried out through dedicated mechanical transfer pump with fixed pipeline in closed system. Manual handling shall be limited.
5. CA-2 may store the used oil for a period not exceeding 90 days.
6. Minimum of 01meter clear space should be left between two adjacent rows of drums in pair for inspection.
7. The storage and handling should have at least two routes to escape in the event of any fire in the area.
8. Adequate storage capacity (i.e. 50 % of the annual capacity of the hazardous waste collection) should be provided in the premises.
9. Storage area should be designed to withstand the load of material stocked and any damage from the material spillage.
10. Storage area should be provided with the flameproof electrical fittings and it should be strictly adhered to.
11. Automatic smoke, heat detection system should be provided in the sheds. Adequate firefighting systems should be provided for the storage and other areas in the facility.
12. Drums containing Used oils stored in the storage area should be labeled properly indicating mainly type, quantity, characteristics, source and date of storing etc.
13. Smoking shall be prohibited in and around the storage areas.
14. Good housekeeping need to be maintained around the storage areas.
15. Signboards showing precautionary measures to be taken, in case of normal and emergency situations should be displayed at appropriate locations.
16. The CA-2 shall provide adequate storage area to meet the above requirements.

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